

Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

.....
Conservatorship of Octavio Hernandez Espinoza

22PR000222

REVIEW HEARING

APPEARANCE REQUIRED

.....
Estate of Peter Francis Rieder

24PR000068

STATUS CONFERENCE RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. There is no new Status Report on file. Petitioner is therefore directed to appear and update the Court on the status of the case.

.....
Estate of John Daniel McDonald

24PR000206

AMENDED FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF STATUTORY COMPENSATION TO ADMINISTRATOR AND ATTORNEYS AND FOR FINAL DISTRIBUTION AND ORDER TO VACATE JULY 1, 2026 ORDER

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The July 1, 2026 order is VACATED.

.....
In the Matter of The Hasty Family Trust

25PR000242

VERIFIED AMENDED PETITION CONCERNING INTERNAL AFFAIRS OF TRUST (filed 8/11/26)

APPEARANCE REQUIRED.

.....
Estate of Aura R. Vollert

26PR000158

PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Richard S. Thomas is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on August 25, 2027, at 8:30 a.m. in Dept. A. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Shirley Jo Kilgore v. Piner’s Nursing Home

26CV001142

PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES TO WRITTEN DISCOVERY, SET ONE; REQUEST FOR SANCTIONS

TENTATIVE RULING: The requests for orders compelling further discovery responses are MOOT. The request for an award of monetary sanctions is DENIED.

Plaintiff Shirley Jo Kilgore, by and through her Guardian ad Litem Daniel P. McQueeney, moves, pursuant to Code of Civil Procedure sections 2023.010, 2023.030, 2030.300, 2031.310, 2030.290, subdivision (b), 2033.280 subdivisions (b) and (c), and 2033.290 for an order compelling Defendant Piner’s Nursing Home, Inc. (Piner’s) to serve verified, code-compliant further responses, without objection, to: (1) Special Interrogatories, Set One, Nos. 1 through 49; (2) Requests for Production of Documents, Set One, Nos. 1 through 60; and (3) Requests for Admission, Set One, Nos. 1 through 5 and 11 through 46. Ms. Kilgore also moves to compel Piner’s: (4) to produce documents responsive to the subject Requests for Production; (5) to serve *verified* responses to Form Interrogatories, Set One; (6) to serve verified, code-compliant responses without objection to Requests for Admission, Set One, Nos. 6 through 10, or, in the alternative, an order deeming admitted the truth of the matters specified in those requests. Finally, Ms. Kilgore moves for an award of monetary sanctions against Piner’s and its counsel of record, jointly and severally, in the amount of \$10,860.00.

Piner’s presents evidence that, on August 10, 2026, the day the instant Motion was filed, Piner’s produced further responses to each of the subject sets of discovery, and produced a verification for each on August 12, 2026. (See Declaration of Sean Worsey at ¶¶ 23-26.) These responses contain substantive answers to most, if not all, of the subject discovery requests. (See *id.* at Exh. A.) Piner’s also presents evidence that, on August 11, 2026, it produced over 3,000 documents in response to the Requests for Production.

Ms. Kilgore observes that the Opposition was served one day later than the deadline set by the Court. (See Reply in Support of Plaintiff’s Motion at 2:1-6.) Ms. Kilgore does not, however, assert that she has suffered any prejudice as a result of that delay. Moreover, Ms. Kilgore addresses the opposition on its merits through the Reply. The Court, therefore, declines Ms. Kilgore’s invitation to disregard the Opposition.